

TOME III

The Invisible Colonist

Nabek — Off the Ship

August 5, 2026

From Roman res to the social insurance number

THIRD PART

Legal Personality, That Invisible Colonist

From the Roman slave — *res*, movable thing — to the modern citizen — social insurance number, credit, biometric digital identity —, legal personality has been alternately denied then imposed universally. Not to liberate, but to subject everyone to the same register of —

To be "recognized" by the State is to be filed, traceable, taxable, recoverable. The citizen has become debtor, guarantor of his own debt, hostage of his own digital identity. They told you it was for your own good. For your security. So that you would be protected. But look closely. Protection looks like a cage. Security looks like a chain. And the good looks like a sacrifice they ask you to make on the altar of —

I will explain what the grimoires say, but without the jargon. When a baby is born, he is a living being. He breathes. He cries. He *is*. But immediately, they stick a number on him. An imposed family name. A birth certificate that registers him as merchandise in the port. This number is like a mask they stick on your face. A double. A copy —

This double is called legal personality. It is a fiction. A character in a book that the State writes. This character can own a house, pay taxes, sign contracts. But he does not breathe. He has no heart. He has no dignity. He is a tool. A tool so that the machine knows where you are, how much you owe, what you own, what you —

The Supreme Court of Canada, in 2020, in *Québec (Attorney General) v. 9147-0732 Québec inc.* (SCC 32), wrote this: "Only human beings can possess human dignity. Legal persons cannot." It is the Supreme Court of the Canadian State that says it. Not a poet. Not a rebel. A court of —

justice. It admits that the legal person — the corporation, the institution, the register — is devoid of dignity. Only the human being is capable of it.

The European Court of Human Rights, in *Streletz, Kessler and Krenz v. Germany* (Grand Chamber, 22 March 2001), qualified the right to life as an "inalienable attribute of the human being." Not of society. Not of

the legal person. Of the human being. What is inalienable can be neither ceded nor confiscated. It precedes every contract. It precedes every register. It precedes every number.

The Inter-American Court of Human Rights, in its advisory opinion OC-22/16 (2016), ruled unanimously that legal persons hold no rights under the American Convention. None. Zero. They exist in law, but they do not possess fundamental freedoms. They are empty shells. Masks without faces. Ships without captains.

The International Criminal Court, in its Rome Statute (Article 25), retained only natural persons. Legal persons were proposed in 1998, and rejected. Even international criminal justice refuses to grant moral individuality to artificial entities. It knows. It knows that responsibility can exist only in the living being. A machine cannot be guilty. Only the one who pulls the lever is guilty. Only the one who signs the decree is guilty. Only the one who obeys knowingly is guilty.

Hobbes, in the *Leviathan*, already distinguished the natural person from the artificial person. Savigny and Kelsen built the entire science of law on this distinction: legal personality is an attribution, a technical fiction, not a living reality.

When I say that the citizen is not the human, I am not saying something new. I am saying what the law has known for centuries, but which it hides under thousands of pages of bureaucratese. It hides it because if it said it clearly, everyone would understand that the cage is a cage. And then, who would stay inside?

The legal person is a fiction of the State for managing property relations. The natural person is a living being who precedes the State. The law knows this. It hides it. And it forces the living being to identify as a legal person — social insurance number, tax, register — in order to exist within the system.

It is the colonial circle: the living being must translate himself into a legal entity in order to be recognized. Your repudiation says: I refuse this translation. I am *onkwehonwe* — true being — before being "citizen" or "taxpayer." I am the breath before being the number. I am the earth before being property. I am the river before being the border.

Look closely at this distinction. It is not theoretical. It is daily. It is in every letter you receive from the State, where they call you by your register name and your number. It is in every time they ask you for your ID — not to know you, but to verify that you are indeed the merchandise —

LIVING BEING (NABEK)	LEGAL PERSONALITY (THE REGISTER)
Born of his mother	Constituted by an administrative act
Inherent dignity	No dignity (SCC 2020)
Inalienable freedom	Submission to jurisdiction
Personal sovereignty	Social insurance number
Inherent rights, not granted	Revocable privileges
Can repudiate citizenship	Cannot exist without the State
Relationship, earth, speech	Contract, property, code

Presence	Claim
Responsibility	Obligation
Wampum, birch-bark canoe	Colonial ship, structural debt

This table is not abstract philosophy. It is the map of your existence. On one side, you are what breathes. On the other, you are what is managed. And the system does everything so that you confuse the two. So that when they call you by your number, you answer "present." So that when they ask you to pay to exist, you believe it is —

It is not normal. It is an occupation. Not an occupation with tanks. An occupation with forms. Contracts we did not sign. Debts we did not contract. Names we did not choose. Numbers they stuck on our foreheads like branding —

When they impose a social insurance number on me, a credit score, a digital identity, they do not recognize me. They construct me. They replace me with a manageable copy. They transform me into *res*, into thing, into merchandise of the port. And I, I refuse. I tear off the mask. I return the number. I leave the —

I present myself!

Nabek!

Son of Carole

Grandson of Isabelle

Great-grandson of Alexina

in the year four hundred ten of the treaty of sixteen sixteen

speaking 5 days before the 4th full moon

I speak from the Island of the Turtle,

in the sector they have named

illegitimately

Quebec.

I am on unceded lands,

never sold,

never —

Occupied by force, by cunning, by lies, by silence!

WHAT THE JUDGMENTS ADD TO THIS PRESENCE

I say that I am presence, not citizen. I say that my legitimacy comes from the soil and not from the register. The judgments, for their part, trace the border between the living and the —

In 1906, *Hale v. Henkel* (201 U.S. 43) established a crystalline distinction between the individual and the corporation. The individual has constitutional rights. The corporation does not. When I say that legal personality is a cage, it is not a metaphor. It is a distinction that American law has consecrated: the human being and the artificial entity do not share the same —

In 1956, *US v. Minker* (350 U.S. 179) qualified the government as an "artificial person." The government itself, in the eyes of the law, is a construction. A fiction. And a fiction cannot possess inalienable freedoms. Only the living man —

In 1857, *Dred Scott v. Sandford* (60 U.S. 393) contained this phrase, which has been too forgotten: every man is independent of the laws of the State according to the laws of nature. Even in this infamous decision, the law recognized that there exists a natural sphere that precedes —

In 1922, *City of Dallas v. Mitchell* (245 S.W. 944) said that freedoms are inherent, that they do not come from the government. They come from existence itself. When I say that my legitimacy comes from the soil and not from the register, I am only repeating what the law wrote before denying —

In 1967, *Afroyim v. Rusk* (387 U.S. 253) declared that citizen sovereignty is inalienable. If citizenship is inalienable, then the choice to rid oneself of it is equally so. The law says that no one can dispossess me of my sovereignty. I add: no one can oblige me to keep it in the form of a —

In 1969, *Shuttlesworth v. Birmingham* (373 U.S. 262) went further: if the State converts a freedom into a privilege, the citizen may ignore it. When I withdraw my consent, I do not aggravate an offense. I exercise an option that crime cannot —

In 1871, *Miller v. US* (78 U.S. 11) said: "The claim and exercise of a constitutional right cannot be converted into a crime." To claim a freedom, to exercise it, cannot be a crime. When I live according to my conscience, I do not commit an offense. I exercise a freedom that crime cannot —

But once again, I do not claim. I *am*. I walk. I breathe. Their constitutions speak of inalienable rights. I speak of inalienable life. It is older. It is deeper. It is the earth beneath their —

Nabek — Off the Ship — Island of the Turtle — Year 410 of the 1616 Treaty

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